

23VECV01477 23VECV01477

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Case Number: 23VECV01477 Hearing Date: September 2, 2026 Dept: 107

SUPERIOR COURT

OF THE STATE OF CALIFORNIA

COUNTY OF LOS

ANGELES

NORTHWEST

DISTRICT

EFRAIN HERNANDEZ GOMEZ, et

al.,

Plaintiffs,

v.

PARK RESEDA CONDOMINIUM ASSOCIATION INC., A CALIFORNIA

CORPORATION, et al.

Defendants.

Case Number Department

23VECV01477 107

COURT'S [TENTATIVE]

ORDER RE:

Motion for Summary

Judgment or,

alternatively,

Summary Adjudication

(Moving Party Defendant Park Reseda

Condominium

Association, Inc.)

[THE FOLLOWING IS A TENTATIVE RULING IN THE ABOVE CASE]:

Deny

I.

BACKGROUND

On

or about April 5, 2021, Plaintiff Norma Letisia Valencia ("Valencia") parked in Defendant Park Reseda Condominium Association Inc.'s parking lot. (Second Amended Complaint "SAC" p. 2.)

Valencia asked the security guard, Defendant Raymundo Reducindo Oliva ("Olivo"), to move his vehicle so Plaintiff Efrain Hernandez Gomez ("Gomez") could park. (SAC p. 2.) Oliva refused, and Valencia noticed Oliva "had slurred speech, bloodshot eyes, and reeked of alcohol." (SAC p. 2.) Valencia telephoned Oliva's supervisor to report him. (SAC p. 2.)

Oliva then "became enraged, cursing, yelling, and threatening Plaintiffs with violence." (SAC p. 2.) Oliva pepper sprayed Valencia and Gomez and struck, kicked, and shoved Gomez. (SAC p. 2.)

On

April 4, 2023, Gomez and Valencia ("Plaintiffs") filed a complaint against Defendants Park Reseda Condominium Association Inc., LB Property Management Inc. dba LBPM, GTO Security Corp., Oliva, and Does 1 through 40 ("Defendants"), alleging five causes of action.

On

January 12, 2024, Plaintiffs filed a first amended complaint against Defendants alleging five causes of action.

On

May 15, 2024, Plaintiffs filed a second amended complaint against Defendants alleging causes of action for: (1) battery; (2) assault; (3) negligence; (4) negligent hiring, supervision, or retention of employee; and (5) loss of consortium.

On

March 12, 2026, Defendant Park Reseda Condominium Association Inc. (“Defendant”) filed a motion for summary judgment or alternatively, summary adjudication (the “Motion”). On August 13, 2026, Plaintiffs filed an opposition. On August 20, 2026, Defendant filed a reply.

II.

PLAINTIFFS’

OBJECTIONS

Plaintiffs

submit objections to portions of Jennifer Detar’s declaration.

Evidence

Grounds

Ruling

Detar

Declaration ¶ 3, “Prior to the Park Reseda entering into any contract with GTO, Park Reseda, through its Board of Directors and/or its managing agent, LB PROPERTY MANAGEMENT, INC., (‘LBPM’) undertook reasonable steps to confirm that GTO was properly licensed and insured to perform the scope of work for which it was retained.”

Lack

of personal knowledge; lack of foundation; improper lay opinion and conclusory testimony; misleading.

Overruled

Detar

Declaration ¶ 4, “GTO, and not Park Reseda Condominium Association, Inc.,

hired, trained, supervised, and paid OLIVA. At no time did the Park Reseda participate in, direct, or control the manner in which GTO trained or supervised RAYMUNDO OLIVA ('OLIVA')."

Lack

of personal knowledge; lack of foundation; contradicted by the evidentiary record/misleading; improper lay opinion/legal conclusion.

Overruled

Detar

Declaration ¶ 5, "Park Reseda Condominium Association, Inc., through its property management company, LBPM, maintained a homeowner complaint system for the purpose of receiving and addressing concerns raised by residents. Under this system, homeowners were encouraged to lodge complaints by contacting LBPM's office and speaking with LBPM's concierge desk or the Association's HOA supervisor. Homeowners also had the option of submitting complaints by email or through the homeowner portal."

Lack

of personal knowledge; lack of foundation; vague and ambiguous as to time; misleading.

Overruled

Detar

Declaration ¶ 6, "In connection with this matter, I spoke with LBPM's manager, Enrique Olvera, regarding any complaints made by homeowners concerning OLIVA prior to the incident alleged in this action. Mr. Olvera confirmed to me that LBPM received no complaints from Park Reseda homeowners regarding OLIVA before the alleged assault on Plaintiffs."

Hearsay;

lack of personal knowledge; lack of foundation; contradicted by the Declarant Valencia.

Sustained

Detar

Declaration ¶ 7, "Additionally, to the best of my knowledge, neither the

Association nor any member of its Board of Directors received any complaints, reports, or warnings concerning OLIVA prior to the alleged incident. The Association had no notice of any conduct by OLIVA that would have suggested a risk of harm to residents or guests before the events at issue in this case.”

Lack

of personal knowledge; lack of foundation; hearsay; improper lay opinion and conclusory testimony; misleading.

Overruled

Detar

Declaration ¶ 8, “The Association had no knowledge or control over when OLIVA arrived on site to start his shifts.”

Lack

of personal knowledge; lack of foundation; improper lay opinion/legal conclusion; contradicted by the evidentiary record/misleading.

Overruled

III.

TIMELINESS

A

motion for summary judgment “may be made at any time after 60 days have elapsed since the general appearance in the action or proceeding of each party against whom the motion is directed or at any earlier time after the general appearance that the court, with or without notice and upon good cause shown, may direct.” (Code Civ. Proc., § 437c, subd. (a)(1).) “The motion shall be heard no later than 30 days before the date of trial, unless the court for good cause orders otherwise. The filing of the motion shall not extend the time within which a party must otherwise file a responsive pleading.” (Code Civ. Proc., § 437c, subd. (a)(3).)¿

¿

Per Code of Civil

Procedure section 437c, subdivisions (a)(2), (b)(2) and (4):

¿

Notice of the motion and supporting

papers shall be served on all other parties to the action at least¿81¿days before the time appointed for hearing.

If the notice is served by mail, the required¿81-day¿period

of notice shall be increased by 5 days if the place of address is within the

State of California, 10 days if the place of address is outside the State of

California but within the United States, and 20 days if the place of address is

outside the United States. If the notice is served by facsimile transmission,

express mail, or another method of delivery providing for overnight delivery,

the required¿81-day¿period of notice

shall be increased by two court days . . . An

opposition to the motion shall be served and filed not less than¿20¿days

preceding the noticed or continued date of hearing, unless the court for good

cause orders otherwise . . . A reply to the opposition shall be served and

filed by the moving party not less than¿11¿days preceding the noticed or

continued date of hearing, unless the court for good cause orders otherwise.¿

Defendant served Plaintiffs with the

Motion by electronic mail on March 12, 2026. (Motion pdf pp. 44-46.) March 12,

2026, was more than 81 days, plus two court days for electronic service, before

September 2, 2026. Thus, Defendant timely served Plaintiffs with the Motion.

The opposition and reply were also timely

served and filed.

IV.

LEGAL

STANDARD

“A

party may move for summary judgment in¿an¿action or proceeding if it is

contended that the action has no merit or that there is no defense to the

action or proceeding.” (Code Civ. Proc., §¿437c, subd. (a)(1).)¿¿

“Code

of Civil Procedure section¿437c, subdivision (c), requires the trial

judge to grant summary judgment if all the evidence submitted, and ‘all

inferences reasonably deducible from the evidence’ and uncontradicted by other

inferences or evidence, show that there is no triable issue as to any material

fact and that the moving party is entitled to a judgment as a matter of law.” (Adler v. Manor Healthcare Corp. (1992) 7 Cal.App.4th 1110, 1119, original italics)

“A

defendant moving for summary judgment has the initial burden of presenting evidence that a cause of action lacks merit because the plaintiff cannot establish an element of the cause of action or there is a complete defense.” (Gordon v. Continental Casualty Company (“Gordon”) (2024) 107 Cal.App.5th 89, 99.) “When the defendant moves for summary judgment, in those circumstances in which the plaintiff would have the burden of proof by a preponderance of the evidence, the defendant must present evidence that would preclude a reasonable trier of fact from finding that it was more likely than not that the material fact was true [citation], or the defendant must establish that an element of the claim cannot be established, by presenting evidence that the plaintiff ‘does not possess and cannot reasonably obtain, needed evidence.’” (Padilla v. Rodas (2008) 160 Cal.App.4th 742, 747.)¿

“If

the defendant satisfies this initial burden, the burden shifts to the plaintiff to present evidence demonstrating there is a triable issue of material fact.” (Gordon, supra, 107 Cal.App.5th at pp. 99-100.) To establish a triable issue of material fact, the party opposing the motion “must produce substantial responsive evidence.” (Sangster v. Paetkau (1998) 68 Cal.App.4th 151, 162-163.)¿ Courts “liberally construe the evidence in support of the party opposing summary judgment and resolve doubts concerning the evidence in favor of that party.” (Gordon, supra, 107 Cal.App.5th at p. 99.)¿

V.

DISCUSSION

The

Motion, Opposition, and Reply:

Defendant

moves for summary judgment or, in the alternative, summary adjudication of Plaintiffs’ third cause of action for negligence, fourth cause of action for negligent hiring, supervision, or retention of employee, and fifth cause of action for loss of consortium. (Motion p. 2.)

Defendant

argues it cannot be held liable for negligent hiring because Oliva was employed by Defendant GTO Security Corp. ("GTO") and not Defendant. (Motion pp. 3-4.) Defendant cites evidence showing Defendant had no control over how Oliva performed his work. (Motion pp. 4-5.) Defendant further argues the negligence cause of action fails because Defendant GTO was an independent contractor, Defendant retained no control over GTO, and owed no duty to supervise GTO's employees or ensure background checks were performed. (Motion pp. 5-6.) Defendant also argues the negligence cause of action is meritless because it received no prior complaints about Oliva and therefore had no notice of any prior improper, intoxicated, or violent conduct by Oliva. (Motion p. 7.) Defendant also argues that because it had no prior notice, "there is an absence of evidence that [Defendant's] negligence was the proximate cause of the subject assault." (Motion p. 8.) Finally, Defendant argues Plaintiffs' loss of consortium cause of action is derivative of the other causes of action, so it likewise fails. (Motion p. 8.)

In

opposition, Plaintiffs argue the Motion should be denied because Defendant did not meet its initial burden of production. (Motion pp. 12-13.) Plaintiffs argue Defendant's Motion impermissibly narrows the negligence cause of action as if the only question is whether Defendant had a legal duty to run a background check on Oliva. (Opposition p. 14.) Plaintiffs argue the cause of action "alleges negligence in the management, supervision, operation, security, guarding, patrolling, and control of the premises and alleges a duty to exercise reasonable care in protecting Plaintiffs from foreseeable risks associated with the security function" and "the triable issue is whether [Defendant] exercised reasonable care in selecting and retaining the security contractor and in performing the portions of the security arrangement it retained for itself." (Opposition p. 14.) Plaintiffs also argue Privette is not applicable here because Plaintiffs are not GTO's employees, they are residents injured by the security guard Defendant selected GTO to provide. (Opposition p. 14.) Plaintiffs argue *Camargo v. Tjaarda Dairy* (2001) 25 Cal.4th 1235, 1238-1245 is on point because it addresses circumstances "under which a hirer may be liable for physical harm to third persons caused by a failure to use reasonable care in selecting a competent and careful contractor." (Opposition p. 14.) Plaintiffs argue there are triable issues concerning Defendant's selection and retention of GTO. (Opposition pp. 15-16.) Plaintiffs state they submit an expert declaration showing triable issues relating to breach and causation. (Opposition pp. 16-17.) Plaintiffs argue Defendant's control theory is disputed and does not defeat Plaintiffs'

negligence claim. (Opposition pp. 17-18.) Plaintiffs argue triable issues of fact exist as to whether Defendant had notice. (Opposition pp. 18-19.) Plaintiffs argue Detar lacks personal knowledge as to events that occurred in 2018 because she testified she did not know whether a security-vendor vetting process existed in 2018. (Opposition p. 19.) Finally, Plaintiffs argue Defendant cannot rely on GTO's responses to requests for admission because they are binding only on GTO, not Plaintiff. (Opposition pp. 19-20.)

In reply, Defendant argues that even if the negligence cause of action encompasses a theory relating to Defendant's selection of GTO, the evidence shows GTO hired, trained, supervised, and paid Oliva and evidence concerning GTO's hiring and practices bear on GTO's conduct, not Defendant's. (Reply pp. 3-4.) Defendant further argues its selection of GTO does not make Defendant liable for Oliva's conduct. (Reply pp. 4-5.) Defendant argues the prior complaints Defendant was "rude", "mean", and "would walk away from people" are "complaints concerning demeanor and customer service" and do not constitute notice "OLIVA presented a foreseeable danger of physically assaulting residents." (Reply pp. 5-6.) Defendant argues Plaintiffs cannot rely on Defendant's current practices. (Reply p. 7.)

Negligence:

The elements of a negligence cause of action are: (1) a legal duty to use due care; (2) a breach of such legal duty; and (3) the breach was the proximate or legal cause of the resulting injury. (Ladd v. County of San Mateo (1996) 12 Cal.4th 913, 917.)

Plaintiffs
allege:

At all relevant times,
Defendants owned, rented, leased, managed, supervised, operated, secured, maintained, inspected, guarded, repaired, patrolled, controlled, and/or were employed by or agents of, defendant Park Reseda. Defendants thus owed a duty to Plaintiffs to exercise reasonable care in their actions, to protect Plaintiffs from foreseeable risks of harm, and to refrain from causing Plaintiffs harm. This duty included ensuring that its supervisors, agents, employees, assigns, officers, and servants, including but not limited to Reducindo, were properly

licensed, did not consume alcohol, or use physical violence and/or threats of violence against members of the public or Park Reseda residents, including Plaintiffs, while working within the course and scope of their duties.

On and leading up to

April 5, 2021, Defendants negligently, carelessly, and/or recklessly failed to exercise reasonable care, failed to protect Plaintiffs from foreseeable risks of harm, and failed to refrain from causing Plaintiffs harm by their above alleged conduct.

(SAC

¶¶ 48-49.)

Defendant

states in its separate statement that Defendant “received no complaints, reports, or communications from LBPM or any Park Reseda homeowners regarding OLIVA’s conduct.” (Defendant’s Separate Statement No. 10.) Defendant cites paragraphs 5 through 8 of Detar’s declaration. (Defendant’s Separate Statement No. 10.)

The

court sustained Plaintiffs’ objection to paragraph 6 of Detar’s declaration.

Detar

is a member of Defendant’s board. (Detar Declaration ¶ 1.) Detar states:

[Defendant] through

its property management company, LBPM, maintained a homeowner complaint system for the purpose of receiving and addressing concerns raised by residents. Under this system, homeowners were encouraged to lodge complaints by contacting LBPM’s office and speaking with LBPM’s concierge desk or the Association’s HOA supervisor. Homeowners also had the option of submitting complaints by email or through the homeowner portal.

[¶] . . . [¶]

Additionally, to the

best of my knowledge, neither the Association nor any member of its Board of Directors received any complaints, reports, or warnings concerning OLIVA prior to the alleged incident. The Association had no notice of any conduct by OLIVA

that would have suggested a risk of harm to residents or guests before the events at issue in this case.

The Association had no knowledge or control over when OLIVA arrived on site to start his shifts.

(Detar
Declaration ¶¶ 5-8.)

This evidence satisfies Defendant's burden of showing it had no notice of any complaints about Oliva before the alleged incident.

In opposition, Plaintiffs state in their separate statement "[b]efore the subject incident, [Defendant's] Board Secretary, Plaintiff Valencia, received multiple complaints concerning Oliva's conduct, including complaints that he was 'rude,' 'mean,' and would walk away from people" and [b]efore the incident, [Defendant's] Board Secretary, Plaintiff Valencia, notified both GTO's supervisor and Park Reseda's LBPM property manager about Oliva's conduct." (Plaintiffs' Separate Statement Nos. 17-18.)

Plaintiffs cite Valencia's deposition at 31:22-32:3 and 32:4-16. (Plaintiffs' Separate Statement Nos. 17-18.) At the deposition, Valencia was asked "Did you ever call GTO Security about Raymundo before this incident?" (Plaintiffs' Ex. A pdf p. 26.) Valencia responded: "Victor knew about it, because I had gotten a lot of complaints for him being rude, mean, walking away from people. So Victor had told us that at one point he was gonna -- he was gonna take him away, get somebody else, so be patient, he was gonna get somebody else for us." (Plaintiffs' Ex. A pdf pp. 26-27.) Valencia was also asked: "All right. So if I understand that last answer, you did make a call to Victor, Raymundo's supervisor, about Raymundo's behavior at the condominiums before this incident?" (Plaintiffs' Ex. A pdf p. 27.) Valencia responded: "Yes, sir. And also - I'm sorry. And also notified Nadine Peralta, our manager at that point, as well, from LBPM." (Plaintiffs' Ex. A pdf p. 27.) Finally, Valencia was asked "What was the name of the manager?" (Plaintiffs' Ex. A pdf p. 27.) Valencia responded "Nadine Peralta, from LBPM. And the security - the security guard supervisor was Victor... I -- I can't remember his last name, but I know it was Victor." (Plaintiffs' Ex. A pdf p. 27.)

Defendant

argues the court should disregard the testimony cited above because Plaintiffs “identify no contemporaneous documentary evidence substantiating the alleged complaints” and instead rely on deposition testimony by one of the Plaintiffs in the action. (Reply p. 6.)

“A

court generally cannot resolve questions about a declarant’s credibility in a summary judgment proceeding [citations], unless admissions against interest have been made which justify disregard of any dissimulation.” (AARTS Productions, Inc. v. Crocker National Bank (1986) 179 Cal.App.3d 1061, 1065.) As Defendant acknowledges, whether Valencia’s testimony is credible is inappropriate for the court to consider in ruling on the Motion. (Reply p. 6.)

Defendant

further argues that the complaints do not establish notice of the risk that materialized because they concern “demeanor and customer service” and not notice Oliva “presented a foreseeable danger of physically assaulting residents.” (Reply p. 6.)

In

ruling on a motion for summary judgment, the court “liberally construe[s] the evidence in support of the party opposing summary judgment and resolve[s] doubts concerning the evidence in favor of that party.” (Gordon, supra, 107 Cal.App.5th at p. 99.)² Here, construing the evidence liberally in Plaintiffs’ favor, prior complaints that Oliva was “mean” and “rude” are broad enough that they could constitute notice of the risk that materialized.

Further,

Plaintiffs submit portions of Detar’s deposition testimony. Detar was asked “Does the HOA track - - keep track of complaints about security issues?” (Plaintiffs’ Ex. C pdf p. 49.) Detar responded: “From my understanding, from what Ms. Valencia has told me, there have been members who have gone to her directly about complaints about the security guards. They have not come to me or - - or Ms. Gutierrez about them.” (Plaintiffs’ Ex. C pdf p. 49.) Detar was also asked “How does the HOA keep track of those complaints?” (Plaintiffs’ Ex. C pdf p. 49.) Detar responded “You’ll have -
- you’ll have to ask Ms. Valencia about that.” (Plaintiffs’ Ex. C pdf p. 49.) Finally, Detar was asked “Is it

fair to say that you don't know how the HOA keeps track of complaints about security?" (Plaintiffs' Ex. C pdf p. 49.) Detar responded: "Correct." (Plaintiffs' Ex. C pdf p. 49.) This creates an issue of triable fact as to Detar's statement there have been no complaints about Oliva because it suggests Detar is unaware of how to determine whether there have been complaints.

Triable

issues of material fact exist as to the negligence cause of action.

Negligent

Hiring, Supervision, or Retention of Employee:

"Negligence

liability will be imposed on an employer if it 'knew or should have known that hiring the employee created a particular risk or hazard and that particular harm materializes.'" (Phillips v. TLC Plumbing, Inc. (2009) 172 Cal.App.4th 1133, 1139.) In Phillips, the Court of Appeal noted that section 213 of the Restatement Second of Agency stated:

"(1) A principal who conducts an activity through an agent is subject to liability for harm to a third party caused by the agent's conduct if the harm was caused by the principal's negligence in selecting, training, retaining, supervising, or otherwise controlling the agent...." (Rest.3d Agency, § 7.05, p. 177.)

(Id.
at p. 1140.)

The

Court further noted "'Liability under this rule is limited by basic principles of tort law, including requirements of causation and duty.' [Citation.] Furthermore, '[l]iability under this rule also requires some nexus or causal connection between the principal's negligence in selecting or controlling an actor, the actor's employment or work, and the harm suffered by the third party.'" (Id. at p. 1140, original brackets.)

Plaintiffs

allege Defendant hired Oliva. (SAC ¶¶ 4, 54.) Defendant knew Oliva "was not a licensed security guard and not authorized to carry a gun." (SAC ¶ 54.) Defendant became aware Oliva drank alcohol on the job but "failed to supervise

him to prevent it, failed to get him treatment, failed to train him to work without drinking alcohol, and failed to terminate him.” (SAC ¶ 56.) Defendant was aware, before April 5, 2021, that Oliva “had committed violence upon members of the public while in the course and scope of his duties as a security guard, yet failed to supervise him to prevent it, failed to get him treatment, failed to train him to work with the public non-violently, and failed to terminate him.” (SAC ¶57.) Defendants owed Plaintiffs a duty to adequately hire, supervise, train, and retain Oliva. (SAC ¶ 58.) Defendants breached that duty “to adequately hire, supervise, train, and retain Reducindo regarding the tasks of guarding, securing, monitoring, patrolling, protecting, and interacting with members of the public, and residents of Park Reseda, including Plaintiffs, while complying with the laws of the State of California.” (SAC ¶ 59.)

The

parties do not dispute that Defendant Oliva was employed by GTO and Defendant contracted with GTO to provide security services at the property. (Plaintiffs’ Separate Statement in Response Nos. 2-3.)

Citing

Ayala v. Antelope Valley Newspapers, Inc. (“Ayala”) (2014) 59 Cal.4th 522, 528, Defendant argues it cannot be held liable here because GTO retained control over Oliva while Defendant “did not have the right to control how OLIVA performed his work and therefore cannot be deemed his employer.” (Motion pp. 4-5.)

In

Ayala, the Supreme Court of California stated “[w]hether a common law employer-employee relationship exists turns foremost on the degree of a hirer’s right to control how the end result is achieved.” (Ayala, supra, 59 Cal.4th at p. 528.) The Court further stated “[s]ignificantly, what matters under the common law is not how much control a hirer exercises, but how much control the hirer retains the right to exercise.” (Id. at p. 533, original italics.)

Defendant

states that “GTO, not [Defendant] hired, trained, supervised, and paid OLIVA, and [Defendant] did not exercise control over how GTO trained or supervised him.” (Defendant’s Separate Statement No. 4.) Defendant also states that Defendant “retained no right to control the manner and means of OLIVA’s work.”

(Defendant's Separate Statement No. 5.) Finally, Defendant states it "had no role in OLIVA's hiring, training, or retention." (Defendant's Separate Statement No. 9.) Defendant cites GTO's responses to Defendant LB's Request for Admission and paragraphs 4 and 8 of Detar's declaration. (Defendant's Separate Statement Nos. 4, 5, 9.)

Plaintiffs

argue Defendant GTO's Requests for Admission do not bind Plaintiffs because under Code of Civil Procedure section 2033.410, subdivision (b), the admissions bind only the party making the admission. (Opposition pp. 19-20.)

Code

of Civil Procedure section 2033.410 states:

(a) Any matter

admitted in response to a request for admission is conclusively established against the party making the admission in the pending action, unless the court has permitted withdrawal or amendment of that admission under Section 2033.300.

(b) Notwithstanding

subdivision (a), any admission made by a party under this section is binding only on that party and is made for the purpose of the pending action only. It is not an admission by that party for any other purpose, and it shall not be used in any manner against that party in any other proceeding.

The

court, therefore, views GTO's admissions as binding only GTO, not Plaintiffs.

Detar

states "GTO, and not [Defendant] hired, trained, supervised, and paid OLIVA. At no time did [Defendant] participate in, direct, or control the manner in which GTO trained or supervised RAYMUNDO OLIVA ('OLIVA')." (Detar Declaration ¶ 4.)

Affidavits

submitted with motions for summary judgment "must cite evidentiary facts, not legal conclusions or 'ultimate' facts." (Brown v. Ransweiler (2009) 171 Cal.App.4th 516, 529.)

Detar's

statement Defendant did not "participate in, direct, or control the manner in

which GTO trained or supervised" Oliva is a legal conclusion, not an evidentiary fact.

Detar

also states "[t]he Association had no knowledge or control over when OLIVA arrived on site to start his shifts." (Detar Declaration ¶ 8.)

To

the extent this statement is sufficient to satisfy Defendant's burden, Plaintiffs submit evidence showing a dispute of triable fact as to this issue.

During

Detar's deposition, Detar was asked: "What time do they clock out, the security guards?" (Plaintiffs' Ex. C pdf p. 52.) Detar responded: "From my understanding, they clock out at 6:00 a.m." (Plaintiffs' Ex. C pdf p. 52.) Detar was also asked, "6:00 a.m. And how does the HOA monitor clock-in and clock-out times other than these text messages sent to one of the board members?" (Plaintiffs' Ex. C pdf p. 52.) Detar responded "As far as -- as far as I know, that's the only record that we use is via text. No other documentation or electronic devices used other than cell phones to clock in and out via text." (Plaintiffs' Ex. C pdf p. 52.)

This

deposition testimony contradicts Detar's statement that Defendant had no knowledge or control over when Oliva arrived on site to start his shifts because Detar indicates security guards clock in and out via text messages sent to board members.

Triable

issues of material fact exist as to the negligent hiring, supervision, or retention cause of action.

Loss

of Consortium:

Defendant

states the loss of consortium cause of action fails because it is derivative of the other two causes of action. (Motion p. 8.) There are triable issues of material fact as to the negligence and negligent hiring, supervision, or retention causes of action. Thus, there are likewise triable issues of material fact as to the loss of consortium cause of action.

VI.

CONCLUSION

For

the foregoing reasons, the Motion is denied.

Dated: September 2, 2026 _____ Hon. Eric Harmon

Judge of the Superior Court